



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10067 (PTE)
FIRST REVISION April 21, 1989
CORRECTED COPY

In accordance with 49 CFR 107.107 of the Department of Transportation (DOT) Hazardous Materials Regulations the party(ies) listed below is granted the status of party to DOT-E 10067. The expiration date of the exemption for the party(ies) is May 31, 1998.

This party status applies to the party(ies) listed below based on the application(s) submitted in accordance with 49 CFR 107.107 and the public proceeding thereon. All terms of the exemption remain unchanged. This authorization forms part of the exemption and must be attached to it.

for Alan I. Roberts
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

2/18/97
(DATE)

Dist: FHWA FAA

EXEMPTION HOLDER

APPLICATION DATE

Sandia National Laboratories
Albuquerque, NM

June 12, 1996

Lockheed Martin Energy Research Corporation
Oak Ridge, TN

September 9, 1996

Lockheed Martin Energy Systems, Inc.
Oak Ridge, TN

September 9, 1996



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NOV 10 1994

DOT-E 10667
(FIRST REVISION)

1. Justrite Manufacturing Company, Mattoon, Illinois, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to manufacture, mark, and sell the packaging described in paragraph 7 below for use in the transportation in commerce of the flammable liquids described in paragraph 3 below, subject to the requirements specified herein. This exemption authorizes the manufacture, marking, and sale of non-DOT specification metal drums of five-gallon capacity and comparable to DOT Specification 51, for shipment of certain flammable liquids, and provides no relief from any regulation other than as specifically stated. **NOTE:** This exemption was issued to the regulations in effect on September 30, 1991.

2. BASIS. This exemption is based on Justrite Manufacturing Company's application dated September 29, 1994, submitted in accordance with 49 CFR 107.105.

3. HAZARDOUS MATERIALS (Descriptor and class). Flammable liquids for which a DOT Specification 51 is authorized in 49 CFR 173.119.

4. PROPER SHIPPING NAME (49 CFR 172.101). Flammable liquid, n.o.s., or the specific chemical name or generic commodity description, as appropriate.

5. REGULATION AFFECTED. 49 CFR 173.119, and 178.89.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a non-DOT specification steel drum having a capacity of five gallons, complying with DOT Specification 51, except for 49 CFR 178.89-6, 178.89-3(a) and 178.89-7(c). The packaging is cylindrical and the material of construction is terne plate (lead-coated cold-rolled steel) with a minimum thickness of 0.0204 inch (24 gauge). There are two closures, one is a spring-loaded valve held in the normally closed position by the spring force and a threaded bracket with a screw-type fastener. The other closure is held in place by a threaded bracket with a screw-type fastener and is equipped with two fusible links to ensure the packaging does not rupture in a fire. The closures and other details of the drum must be as shown on the Justrite Manufacturing Company drawing dated 12/17/90, submitted with the petitioner's application.

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8. SPECIAL PROVISIONS.

a. Offerors for transportation of hazardous materials specified in this exemption may use the packaging described in this exemption for the transportation of such hazardous materials so long as no modifications or changes are made to the packages, all terms of this exemption are complied with, and a copy of the current exemption is maintained at each facility from which such offering occurs.

b. During transportation, drum must be retained in a bin or well; or be tied down securely with appropriate strapping on the vehicle.

c. Each drum shall be marked as required by § 178.89-9 except the marking "DOT-E 10667" shall be displayed in place of "DOT 51."

d. A copy of this exemption, in its current status, must be maintained at each manufacturing facility at which this packaging is manufactured and must be made available to a DOT representative upon request.

e. Each packaging manufactured under the authority of this exemption must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated for a specific manufacturing facility.

f. Shippers using the packaging covered by this exemption must comply with the shipping paper, marking, labeling, and placarding requirements of 49 CFR Part 172; all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 100-180.

g. No new construction of the packaging manufactured under the terms of this exemption is authorized after September 30, 1994. As the holder of this exemption, you may request a renewal to continue the use of the packaging, manufactured prior to September 30, 1994, however, the exemption will not carry an expiration date subsequent to September 30, 1996 since use of the packaging is prohibited after that date. This is consistent with the transitional provisions of 49 CFR Section 171.14 and the implementation of the new packaging requirements adopted under Docket HM-181.